

25STCV11850 25STCV11850

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-08

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Case Number: 25STCV11850 Hearing Date: July 8, 2026 Dept: 310

Tentative

Ruling

Judge Kevin

C. Brazile

Department 310

Hearing Date: July 8, 2026

Case Name: Kong, et al. v. Kim, et al.

Case No.: 25STCV11850

Matter: Motion to

Deem Requests for Admission Admitted

Moving Party: Defendant Seung Jae Baek

Responding Party: Plaintiffs

Woo Yong Kong and Hee Eun Kim

Notice: OK

Ruling: The Motion to Deem Requests for Admission

Admitted is granted.

Moving

party to give notice.

The Court

encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On April 23, 2025, Plaintiffs Woo

Yong Kong and Hee Eun Kim, pro per litigants, filed the operative Complaint against Defendants Kison Kim aka Eunjin Kim aka Eun Jin Kim, Grace Kim aka Nahm Kim, Young Sook Park, Scarlett Lee and Sung Yu alleging fraud and deceit in conspiracy. Defendant Seung Jae Baek was named as DOE 2 on October 21, 2025.

On April 22, 2026, Defendant Seung

Jae Baek, pro per litigant, served Requests for Admission, Set One, on Plaintiffs Woo Yong Kong and Hee Eun Kim.

Defendant never received any responses from Plaintiffs. Defendant moves to deem the RFAs admitted pursuant to CCP §2033.28(b). In response, Plaintiffs filed a declaration in opposition testifying that they never received the RFAs and claiming Defendant's proof of service is false and fraudulent.

Plaintiffs failed to respond to the

RFAs, which were supported by a properly executed proof of service by first class mail. (Motion, Ex. A, POS.) The POS of the RFAs was signed by non-party

Dennis Duckworth under penalty of perjury, as required under CCP §1013a(a)(1). A presumption of proper service arises. Plaintiffs conclusory denial that it was ever received does not overcome that presumption.

Plaintiffs failed to serve any response to the RFAs and Defendant's request to deem them admitted "shall" be granted unless Plaintiffs serve responses that substantially comply with CCP §2033.220 before the hearing on the motion. (CCP §2033.280(c).)

Defendant's Motion to Deem Requests

for Admission Admitted is granted pursuant to CCP §2033.280(b) and (c).

Moving party to give notice.